



CHAPTER X.

An Act to empower the county council of the administrative county of Pembroke to establish a ferry across Milford Haven between Hobbs Point at Pembroke Dock and Neyland and for other purposes.

[29th July 1942.]

WHEREAS the county council of the administrative county of Pembroke (in this Act called "the Council") are the owners of a floating landing stage and a steel bridge connecting the same with the shore at Neyland in the said county constructed under the powers of the Pembrokeshire (Neyland Landing Stage) Order 1929 confirmed by the Pier and Harbour Orders Confirmation Act 1929, and the said landing stage and bridge and the road leading thereto form parts of a classified highway:

20 Geo. 5.
c. vii.

And whereas in the year nineteen hundred and thirty-five the Council purchased from His Majesty's Principal Secretary of State for the War Department the pier and inclined landing known as Hobbs Point Pier at Pembroke Dock and the said landing with its approaches was in the year nineteen hundred and thirty-seven classified by the Minister of Transport as a Class 1 highway:

And whereas for many years past passengers have been conveyed across Milford Haven between Neyland and Hobbs Point by boats and steamers but no franchise or exclusive right of carrying passengers animals or goods has ever been granted and no company body or person is under any obligation to maintain and work a ferry:

And whereas the landing at Hobbs Point is not satisfactory for the embarkation and disembarkation of vehicles and passengers and it is expedient that the Council should be

Part III—Hobbs Point Ferry.

Part IV—Finance and miscellaneous.

PART I.
—cont.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

Incorporation
of Acts.

(1) The Lands Clauses Acts with the following exception and modification (namely):—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 is not incorporated with this Act; 8 & 9 Vict.
c. 18.

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Council and shall be sufficient without the addition of the sureties mentioned in that section:

(2) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of land near the railway during the construction thereof and in such provisions for the purposes of this Act "the Railway" and "the work" means the works authorised by this Act and "the centre of the Railway" means the centre of such works respectively: 8 & 9 Vict.
c. 20.

(3) The Harbours Docks and Piers Clauses Act 1847 except sections 12 to 19 inclusive and except the provisions of that Act with respect to lifeboats and to keeping a tide and weather gauge and to buoys, lighthouses and beacons and for the purposes of this Act the words "harbour" "dock" or "pier" wherever used in the said Harbours Docks and Piers Clauses Act 1847 shall be deemed to include (so far as applicable) the landing stage as hereinafter defined. 10 & 11 Vict.
c. 27.

4. In this Act the following words and expressions have the several meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say):— Interpretation.

"The county" means the administrative county of Pembrokeshire;

"The Council" means the county council of the county;

"The ferry" means the service of ferry boats authorised by this Act to be established;

"The landing stage" means the floating landing stage by this Act authorised;

"The clerk" means the clerk of the Council;

PART II.

LANDS.

5. Subject to the provisions of this Act the Council may enter on take and use all or any of the lands delineated on the deposited plan and described in the deposited book of reference for the purposes of the work authorised by this Act or for other the purposes of this Act.

Power to
acquire lands.

6. The powers of the Council for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the thirty-first day of October nineteen hundred and forty-two.

Period for
compulsory
purchase of
lands.

7. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Pembroke for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk and a duplicate thereof shall also be deposited with the town clerk of the borough of Pembroke and such certificate and duplicate respectively shall be kept by the clerk and town clerk respectively with the other documents to which the same relate and thereupon the deposited plan or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Correction of
errors in
deposited plan
and book of
reference.

8. The Council in addition to any other lands acquired by it in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act Provided that the Council shall not create or permit the creation or continuance of any nuisance on any such lands.

Purchase of
additional
lands by
agreement.

9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far

Persons under
disability may
grant ease-
ments &c.

the Order of 1929 and may for that purpose purchase construct hire and provide employ maintain use work and sell or lease such vessels as they may deem necessary together with all proper appliances and conveniences.

12. The Council may by agreement purchase and use any right (if any) of ferry between Hobbs Point and Neyland and any property (real and personal) rights powers and privileges held or enjoyed by the owner or owners of such right (if any) of ferry for the purposes thereof. Provided that nothing in this Act shall recognise or confirm any title right or claim to any existing or other ferry between Pembroke and Neyland as an ancient ferry. Acquisition of ferry rights.

13. Subject to the provisions of this Act the Council may in the parish of St. Mary in the borough of Pembroke in the county of Pembroke and upon the lands and in the lines and according to the levels shown on the deposited plan and section construct and maintain— Power to construct landing stage.

A floating landing stage commencing at a point one hundred and fifty feet or thereabouts measured in a south-westerly direction from the north-eastern end of the existing slipway at Hobbs Point and forty feet or thereabouts measured in a south-easterly direction from the north-western boundary of the said slipway and terminating at a point two hundred and fifty feet or thereabouts measured in a north-easterly direction from the commencement of the said floating landing stage and one hundred and fifty feet or thereabouts measured in a northerly direction from the north-eastern extremity of the quay wall on the south-eastern side of the barge dock adjacent to the said slipway the said floating landing stage being formed by means of an approach bridge or gangway supported at its south-western end upon the said slipway and at its north-eastern end upon a floating pontoon guided between dolphins or towers.

14. In the construction of the landing stage the Council may subject to the provisions of this Act deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plan and they may also deviate vertically from the levels shown on the deposited section to any extent. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Minister. Limits of deviation.

15.—(1) Subject to the provisions of this Act the Council may deepen dredge scour and excavate the bed and foreshore of the channel to the extent necessary to secure a sufficient Power to dredge.

Council to the Crown and shall be recoverable either as a debt due to the Crown or by the Minister summarily as a civil debt.

Part III
—contd.

20.—(1) Where any work constructed by the Council under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Minister may by notice in writing either require the Council at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister may think proper.

Abatement of
work abandon-
ed or
decayed.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Council they have failed to comply with such notice the Minister may execute the works required to be done by the notice at the expense of the Council and the amount of such expense shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or by the Minister summarily as a civil debt.

21.—(1) The Council shall at or near such part of any work by this Act authorised as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Minister shall from time to time require or approve.

Lights on
works during
construction.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and in the case of a continuing offence to a daily penalty not exceeding two pounds.

22. Any person who wilfully obstructs any person acting under the authority of the Council in setting out the lines of the landing stage or who pulls up or removes any poles or

Penalty for
obstructing
works.

27. The Council may subject to the provisions of this Act make alter repeal vary amend and enforce byelaws with respect to the ferry undertaking for all or any of the purposes following (that is to say):—

PART III.
—cont.
Byelaws as to
ferry.

- (a) For regulating controlling and limiting the use of the vessels boats and buildings used for the purposes of the ferry undertaking;
- (b) For preventing the commission of nuisances in or upon the ferry undertaking or the vessels or boats used for the purposes thereof;
- (c) For preserving the vessels boats buildings and conveniences used for the purposes of the ferry undertaking and preventing injuries and damage to the same;
- (d) For regulating the duties and conduct of all persons and the officers and servants of the Council who shall be employed in and about the ferry undertaking and in and about the vessels or boats used for the purposes thereof;
- (e) For regulating the conveyance of passengers passengers' luggage parcels animals vehicles goods articles or merchandise in or upon any vessels or boats used for the purposes of the ferry undertaking and the embarkation and disembarkation of the same respectively and for prohibiting the embarkation of any luggage parcels articles goods animals vehicles and merchandise in any of such vessels or boats which may in the opinion of the Council be injurious to or prejudicially affect the use of such vessels and boats or the traffic to be carried therein;
- (f) For regulating and controlling or preventing if thought fit the fastening or mooring of vessels or boats of every description to any of the landing places moorings or works of the Council and the embarkation and disembarkation of persons at such landing places from vessels or boats other than the ferry boats of the Council;
- (g) For preventing persons navigating vessels or boats from negligently or wilfully obstructing the working of the ferry undertaking and the vessels or boats used for the purposes thereof and for preventing persons with boats animals vehicles goods articles and merchandise or otherwise negligently or wilfully obstructing the approaches to the ferry and ferry buildings.

date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section.

(2) Any application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application for revision of authorised rates or an authorised rate an order has been made or the Minister has decided not to make an order no further application for a revision of the rates or rate to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall cause an inquiry to be held in reference thereto and the provisions of the section of this Act whereof the marginal note is "Inquiries by Minister" shall apply to such inquiry as if it were an inquiry held in pursuance of that section.

Provided that in cases where no objection has been made to the application or where any objection which has been made has either been withdrawn or appears to the Minister to be of a trivial nature the Minister may if he thinks fit dispense with such inquiry.

(5) Section 27 of the Order of 1929 is hereby repealed as from the opening for traffic of the landing stage or the ferry.

35. Section 46 of the Harbours Docks and Piers Clauses Act 1847 shall extend to the tolls authorised by this Act for the use of the ferry.

Application of section 46 of Harbours Docks and Piers Clauses Act 1847 to ferry tolls.

36. The tolls rates and charges which may be taken by the Council under this Act shall be paid to such persons and at such places upon or near the landing stage or the ferry as the case may be and in such manner and under such regulations as the Council shall by notice to be annexed to the list of tolls rates and charges appoint and the Council may recover such tolls and rates in a summary manner as a civil debt or by action in any court of competent jurisdiction.

Taking and recovery of tolls rates &c.

37. The Council may in exchange for the payment of any toll or rate hand to the passenger a ticket and any person to whom a ticket is so handed may be required on demand to deliver up such ticket to the toll collector or other person appointed by the Council to collect the same at such place

As to tickets for ferry passengers.

43.—(1) Without prejudice to any existing right of His Majesty and save as provided by the Army Act and the Air Force Act nothing in this Act shall extend to authorise any tolls to be demanded or received for the use of the ferry from any person when on duty in the service of the Crown or for any animal vehicle or goods the property of or when being used in the service of the Crown or returning after being so used or from any police officer acting in the execution of his duty or for any mail bag as defined by the Post Office Act 1908.

PART III.

—cont.

Exemption
from tolls in
case of persons
in service of
Crown and
others.

(2) If any person wilfully and with intent to defraud claims or takes the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable on summary conviction to a fine not exceeding ten pounds.

(3) Nothing in this section shall prejudice or affect the application of section 28 of the Harbours Docks and Piers Clauses Act 1847 in relation to the use of the landing stage.

44.—(1) In the exercise of the powers conferred by this Part of this Act the Council shall not interfere with damage or injuriously affect any submarine cable placed and maintained by the Postmaster-General across Milford Haven.

For protection
of Postmaster-
General.

(2) (a) Before exercising the powers conferred by the section of this Act the marginal note whereof is "Power to dredge" within a distance of fifty yards of any such submarine cable the Council shall give to the Postmaster-General fourteen days' notice in writing in respect of their intention to exercise such powers; and

(b) Any sand mud shingle and other materials dredged up and removed shall not be laid down or deposited in such a place or manner as to cover any such submarine cable or impede any work of or connected with the inspection or repair of such cable.

(3) Any electrical works or apparatus constructed or provided under the provisions of this Act shall be so constructed maintained and used as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

45. The Council shall in respect of the landing stage be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Local
lighthouse
authority.

the statutory borrowing power would be repayable. Provided that the Council shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding (as the case may be) as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the county fund or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power:

- (2) In the accounts of the county fund an amount equal to interest (calculated at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power) on any moneys so used and for the time being not repaid shall be credited to the lending fund and debited to the purpose with reference to which the moneys are so used:
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of such power and the provisions of Part IX of the Act of 1933 as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

The powers conferred by this section shall *mutatis mutandis* extend to and may be exercised by the council of any county district.

49.—(1) Notwithstanding anything contained in any other Act or Order all moneys received by the Council whether on capital or revenue account including (but without prejudice to the generality of this provision)—

Receipts and
expenses.

- (a) all money received on account of the revenue of any of the undertakings of the Council; and
- (b) interest and other annual proceeds received on the investments forming part of any fund accumulated for the redemption of debt or as a reserve renewals repairs depreciation capital reserve contingency or other similar fund;

shall be carried to and form part of the county fund and all payments and expenses made and incurred by the Council in respect of any of the said undertakings or in carrying into execution the powers and provisions of this or any other Act or Order (including interest on moneys borrowed by the Council and all sums required by law to be paid or trans-

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

51.—(1) If in respect of any year the moneys received by the Council on account of the revenue of any of the undertakings of the Council (including the interest and other annual proceeds received by the Council in that year on the investments representing or forming part of any such fund as is referred to in paragraph (b) of subsection (1) of the section of this Act of which the marginal note is "Receipts and expenses" provided in connection with the undertaking) shall exceed the moneys expended or applied by the Council in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section of this Act the Council may in respect of that year (if they think fit but subject to the provisions hereinafter contained) apply out of the county fund a sum not exceeding the amount of such excess to any of the following purposes:—

Application of
revenue of
undertakings.

(a) In reduction of capital moneys borrowed for the purposes of the undertaking;

(b) In the renewal and the construction extension or improvement of any works and conveniences for the purposes of the undertaking;

(c) In providing a reserve fund in respect of any of the undertakings of the Council by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used in any other manner authorised by this Act) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund from time to time prescribed by the Council.

(2) Any reserve fund which has been provided in respect of any undertaking of the Council and which is in existence on the first day of April nineteen hundred and forty-three shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section may be applied—

(a) in making good to the county fund any deficiency at any time happening in the income of the Council from the undertaking in connection with which it is formed; or

(b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of that undertaking; or

(3) The posting by the Council of a letter containing an order for the payment of interest in pursuance of this section shall as respects the liability of the Council be equivalent to the delivery of the order to the registered holder of the security of the Council.

(4) Every order so sent by post shall be deemed to be a cheque and the Council shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

45 & 46
Vict. c. 61.

(5) In and for the purposes of this section the expression "security" does not include stock.

56.—(1) The Council may close the register of transfers of any class of security of the Council for a period not exceeding thirty days next before any date on which any interest or dividend on the class of securities to which such register relates are payable. Provided that this subsection shall not apply with respect to the register of transfers of any stock created by the Council in pursuance of any regulations made by the Minister of Health under section 204 of the Act of 1933.

Closing of
registers.

(2) Any transfer of any security of the Council made during the period when the register of transfers of such security is closed shall as between the Council and the persons claiming under the transfer (but not otherwise) be considered as made subsequently to the payment of the interest or dividend on such security as the case may be.

57. If a justice is satisfied on complaint by any rate collector of the council of a county district that any person is quitting or about to quit any premises in that district and has failed to pay on demand any general rate which may be due from him and intends to evade payment of the same the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein to seize forthwith and detain the goods and chattels of the defaulter until the complaint is determined upon the return of the summons.

Recovery of
rates from
persons
removing.

58. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) without such consent.

Restriction on
borrowing.2 & 3 Geo. 6.
c. 62.3 & 4 Geo. 6.
c. 20.

59. Nothing in this Act contained shall prejudice or affect the powers conferred by the Dockyard Ports Regulation Act 1865 or interfere with any regulations or rules from time to time made or to be made thereunder by Order in Council.

Saving rights
of Admiralty.

The SCHEDULE referred to in the foregoing Act.

FERRY TOLLS.

FOR EACH CROSSING.

	s.	d.
For each person on foot or in a vehicle other than the driver thereof	0	3
For each dog	0	1
For each calf goat pig or sheep	0	4
For each head of cattle	0	6
For each horse mule or donkey	0	6
For each bicycle including rider	0	6
For each perambulator including person in charge thereof	0	6
For each handcart truck or barrow including person in charge thereof	0	6
For each vehicle not exceeding two tons (including load) drawn by one horse	2	6
For each additional ton or part thereof	1	0
For each vehicle not exceeding two tons (including load) drawn by two horses	3	0
For each additional ton or part thereof	1	0
For each motor cycle including rider	1	0
Return fare	1	6
For each motor tri-car or motor cycle and sidecar	1	6
Return fare	2	6
For each motor car not exceeding 12 h.p.	2	3
Return fare	3	6
For each motor car exceeding 12 h.p. but not exceeding 24 h.p.	2	9
Return fare	4	6
For each motor car exceeding 24 h.p.	3	0
Return fare	5	0
For each charabanc or omnibus having seats for not more than twelve persons	3	0
For each charabanc or omnibus having seats for more than twelve persons	3	6
For each motor van or motor lorry not exceeding two tons (including load)	3	0
For each additional ton or part thereof	1	0
For each steam wagon not exceeding two tons (including load)	3	0
For each additional ton or part thereof	1	0